

PART II

REPEALS ARISING OUT OF S. 3 OF THIS ACT

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 62.	The National Insurance (Industrial Injuries) Act, 1946.	In section forty-seven, the proviso to subsection (1) and subsections (3), (4) and (5).
1 & 2 Eliz. 2. c. 43.	The National Insurance (Industrial Injuries) Act, 1953.	In section four, subsection (5). In the Second Schedule, paragraph 6.

CHAPTER 19

Emergency Laws (Repeal) Act, 1959

ARRANGEMENT OF SECTIONS

Section

1. Repeal of enactments authorising continuation of Defence Regulations, etc.
2. Temporary continuation of certain Defence Regulations with modifications.
3. Temporary continuation with modifications of certain emergency powers of Minister of Supply.
4. Modification of emergency provisions with respect to transfer of ships.
5. Temporary saving for certain Defence Regulations.
6. Emergency provision to have permanent effect.
7. Expenses.
8. Northern Ireland.
9. Channel Islands and Isle of Man.
10. Short title, duration and repeals.

SCHEDULES

First Schedule—Amendments in Defence Regulations.

Second Schedule—Form in which Defence Regulations continue in force by virtue of s. 2.

Part A—The Defence (General) Regulations, 1939.

Part B—The Defence (Finance) Regulations, 1939.

Part C—The Defence (Armed Forces) Regulations, 1939.

Third Schedule—Supplementary provisions with respect to Defence Regulations.

Fourth Schedule—Repeals.

An Act to repeal certain emergency laws and, in particular, the enactments providing for the continuation of Defence Regulations; to continue in force for a limited period and with modifications certain Defence Regulations and other emergency provisions; to give permanent effect to an emergency provision; and for purposes connected with the matters aforesaid.

[25th March, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The following enactments are hereby repealed, that is to say—
- (a) the proviso to subsection (1) of section eight of the Supplies and Services (Transitional Powers) Act, 1945; and
 - (b) section seven of the Emergency Laws (Miscellaneous Provisions) Act, 1947,

Repeal of enactments authorising continuation of Defence Regulations, etc.

being the enactments by virtue of which the said Act of 1945, certain provisions of the Emergency Powers (Defence) Act, 1939, and Defence Regulations made under those Acts have continued in force; and accordingly the said Act of 1939 and, subject to the provisions of this Act, the said Act of 1945 and the Regulations aforesaid shall cease to have effect.

- 2.—(1) Notwithstanding anything in the foregoing section, but subject to the provisions of this section, the following Defence Regulations as they had effect immediately before the commencement of this Act, that is to say—
- (a) in Part IV of the Defence (General) Regulations, 1939, Regulation 55 (general control of industry), Regulation 55AA (keeping of books, making of returns, entry and inspection) and Regulation 55AB (price control of goods and services);
 - (b) in the Defence (Finance) Regulations, 1939, Regulation 2A (power of Treasury to prohibit action on certain orders as to gold, etc.) and, so far as applicable to that Regulation, Regulations 9, 10 and 11 (which contain general and supplementary provisions);

Temporary continuation of certain Defence Regulations with modifications.

- (c) so far as applicable to any of the aforesaid Regulations, Part V of the Defence (General) Regulations, 1939 (which contains general and supplementary provisions), except paragraph (2) of Regulation 102A (which relates to instruments made in the exercise of certain powers by the Government of Northern Ireland); and

(d) the Defence (Armed Forces) Regulations, 1939,

shall continue in force so long as this section remains in force:

Provided that Her Majesty may at any time by Order in Council revoke in whole or in part any of the aforesaid Regulations.

(2) Those of the Regulations aforesaid specified in the First Schedule to this Act shall have effect by virtue of this section subject to the amendments respectively specified in relation thereto in that Schedule; and notwithstanding any Order in Council in force immediately before the commencement of this Act under section three of the Supplies and Services (Transitional Powers) Act, 1945—

- (a) the powers conferred by paragraph (1) of the said Regulation 55 shall not be exercisable except for the purposes of such an order as is authorised by that paragraph as amended by paragraph 1 of the said First Schedule, but shall be exercisable for the purposes of any such order;
- (b) the powers conferred by the said Regulation 55AA shall not be exercisable except in relation to such an undertaking or class or description of undertakings as is specified in the amendment made by sub-paragraph (b) of paragraph 6 of the said First Schedule, but shall be exercisable in relation to any such undertaking; and
- (c) the powers conferred by paragraph (1) of the said Regulation 55AB shall not be exercisable except in relation to such goods as are specified in the amendment made by paragraph 9 of the said First Schedule, but shall be exercisable in relation to any such goods.

(3) The Regulations referred to in subsection (1) of this section shall be in force by virtue of this section in the form set out in the Second Schedule to this Act, being a form reproducing those Regulations as they have effect by virtue of the two foregoing subsections.

(4) Nothing in subsection (2) of this section shall affect the validity of any order under any of the aforesaid Regulations 55, 55AA and 55AB in force immediately before the commencement of this Act; but nothing in Regulation 98 of the Defence (General) Regulations, 1939, shall authorise the variation, otherwise than by revocation in whole or in part, of any provision of any such order which could not be included in an order made under the Regulation in question after the commencement of this Act.

(5) The following, and the following only, of the directions given before the commencement of this Act under the aforesaid Regulation 2A shall continue in force after the commencement of this Act, that is to say—

- (a) so far only as it relates to Treasury bills, the direction given by Statutory Rule and Order No. 1355 of 1947;
- (b) the direction given by Statutory Instrument No. 862 of 1950; and
- (c) the Control of Foreign Currency Securities Directions, 1957;

and the said directions so continuing in force shall have effect in like manner as if they had been given under the said Regulation 2A as amended by subsection (2) of this section.

(6) Any order under any of the aforesaid Regulations 55, 55AA and 55AB and any general direction under the aforesaid Regulation 2A, being an order made or general direction given after the commencement of this Act, shall be made or given by statutory instrument and—

- (a) in the case of an order under the aforesaid Regulation 55 made wholly or partly by virtue of sub-paragraph (d) of paragraph (1) of that Regulation as amended by paragraph 1 of the First Schedule to this Act, shall not be made unless a draft of the order has been laid before, and approved by a resolution of, each House of Parliament;
- (b) in any other case shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(7) The Third Schedule to this Act, which reproduces with modifications the effect of the following provisions of the Emergency Powers (Defence) Act, 1939, so far as applicable to any Regulation or order having effect by virtue of this section, that is to say, subsection (4) of section one, section three and section seven, shall have effect for the purposes of any such Regulation or order for the time being in force.

(8) Without prejudice to Regulation 99B of the Defence (General) Regulations, 1939 (which provides that for the purposes of section thirty-eight of the Interpretation Act, 1889, which relates to the effect of the repeal by one Act of another Act, any Defence Regulation or order made thereunder shall be deemed to be an Act of Parliament), any Defence Regulation or order thereunder which, without having been expressly revoked, ceases to have effect by virtue of this Act, or which is revoked under the proviso to subsection (1) of this section, shall be deemed for the purposes of the said section thirty-eight to have been repealed by an Act of Parliament.

Temporary continuation with modifications of certain emergency powers of Minister of Supply.

3.—(1) Notwithstanding anything in section one of this Act, section six of the Supplies and Services (Transitional Powers) Act, 1945 (which relates to the powers of the Minister of Supply) shall, subject to the modifications hereinafter specified, continue in force so long as this section remains in force; and accordingly in each of subsections (2), (3) and (4) of the said section six for the words “so long as this Act continues in force” there shall be substituted the words “so long as section three of the Emergency Laws (Repeal) Act, 1959, continues in force”.

(2) In subsection (1) of the said section six (by virtue of which the powers conferred on the Minister of Supply by the Ministry of Supply Act, 1939, with respect to the acquisition, production or disposal of articles required for the public service are extended by the inclusion in the definition of such articles of any supplies which that Minister is satisfied that it is necessary or expedient to maintain, control or regulate for any of certain specified general purposes) for the words from “any supplies” to “this Act” there shall be substituted the words—

- “(a) articles required for the defence of any part of the Commonwealth, including any territory under Her Majesty’s protection or in which she has jurisdiction, or for the maintenance or restoration of peace and security in any part of the world, or for any measures arising out of a breach or apprehended breach of peace in any part of the world;
- (b) experimental or research work in connection with any such articles as are referred to in the foregoing paragraph;
- (c) surplus material of any government department or of the United Kingdom Atomic Energy Authority;
- (d) surplus material of the government of any country outside the United Kingdom, being material which is to be disposed of by Her Majesty’s Government in the United Kingdom in pursuance of an agreement between those governments;

(e) any other article, and any other experimental or research work, in a case where the following conditions are satisfied, that is to say—

(i) that the Minister is requested by the person carrying on an undertaking which includes the production of articles of that or any other description to supply that article to that person for the purposes of his undertaking or, as the case may be, is requested by some person or body to carry out that experimental or research work on behalf of that person or body ; and

(ii) that the Minister can supply that article or carry out that work without expanding the capacity of the establishments for the time being under his control ; and

(iii) that in the opinion of the Minister the supply of that article or the carrying out of that work by him will serve the interests of the community ;

(f) jute, jute bags, jute cloth and jute yarn ”.

(3) Paragraph (f) of subsection (1) of the said section six as amended by the last foregoing subsection shall have effect subject to the provisions by virtue of which functions with respect to the articles mentioned in that paragraph have been transferred to the Board of Trade, being provisions contained in Orders in Council made before the commencement of this Act under the Ministers of the Crown (Transfer of Functions) Act, 1946 ; but save as aforesaid no such Order in Council shall apply to any functions conferred on the Minister of Supply by the said subsection (1) as amended by the last foregoing subsection.

(4) In subsection (4) of the said section six (which provides for the continuance in force of sections seven to thirteen of the Ministry of Supply Act, 1939), for the words “ the provisions of sections seven to thirteen thereof ” there shall be substituted the words “ section ten of that Act, except paragraph (b) of subsection (3) thereof ”.

4.—(1) The Ships and Aircraft (Transfer Restriction) Act, 1939, shall expire at the expiration of the thirty-first day of December, nineteen hundred and sixty-four, except as respects things previously done or omitted to be done ; and accordingly subsection (2) of section thirteen of that Act is hereby repealed.

Modification of emergency provisions with respect to transfer of ships.

(2) After the passing of this Act, the Minister of Transport and Civil Aviation shall not withhold—

(a) his sanction under section one of the said Act of 1939 to any transfer or mortgage, or

(b) his approval under section two of that Act of the transfer of the registry of any ship,

except where it appears to him expedient so to do in the interests of national defence, having regard in particular to any agreement or arrangement concluded in respect of defence matters, or any consultations held in respect of such matters, between Her Majesty's Government in the United Kingdom and the government of any country outside the United Kingdom.

(3) The said Minister may give his sanction under the said section one to any transfer or mortgage notwithstanding that the transfer or mortgage has already been effected, and thereupon that transfer or mortgage shall be deemed for the purposes of the said section one to have been effected under the sanction of that Minister:

Provided that the giving under this subsection of sanction to any mortgage or transfer shall not affect any penalty or forfeiture by virtue of the said Act of 1939 imposed in connection with that transfer or mortgage before the giving of that sanction.

(4) Any sanction or approval under the said Act of 1939 may be expressed to be, and if so expressed shall be, irrevocable, either unconditionally or subject to compliance with any terms or conditions attached thereto, for a specified period.

(5) For section five of the said Act of 1939 (which relates to offences by corporations) there shall be substituted the following section—

“ 5. Where an offence under this Act committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

In this section, the expression ‘director’, in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.”

Temporary
saving for
certain Defence
Regulations.

5. Nothing in this Act shall cause the following Regulations to cease to have effect before the tenth day of December, nineteen hundred and fifty-nine, that is to say, in the Defence (General) Regulations, 1939, as they had effect immediately before the commencement of this Act—

(a) Regulation 59 (which provides for exemptions from Acts relating to factories) ; and

(b) so far as applicable to the said Regulation 59, Part V.

6. In the Government and other Stocks (Emergency Provisions) Act, 1939, section one (which makes provision for rendering inscribed stock transferable by instrument in writing) shall have permanent effect and section two (which relates to the time for the payment of coupons) shall cease to have effect. Emergency provision to have permanent effect.

7. Any expenses incurred by any government department which are attributable to the provisions of this Act shall be defrayed out of moneys provided by Parliament. Expenses.

8.—(1) Nothing in this Act shall restrict the powers of the Parliament of Northern Ireland to make laws with respect to any matter with respect to which that Parliament has power to make laws, and any laws made by that Parliament with respect to any such matters shall have effect notwithstanding anything in any Defence Regulation having effect by virtue of section two of this Act and applicable to Northern Ireland, or in any order or other instrument made under such a Regulation. Northern Ireland.

(2) Where a power to make orders under any such Defence Regulation as aforesaid has been delegated in pursuance of paragraph (1) of Regulation 102A of the Defence (General) Regulations, 1939, to an authority in Northern Ireland, any order made in pursuance of that power, and any order made by virtue of that paragraph by the Governor of Northern Ireland, shall be made by statutory instrument, and the Statutory Instruments Act, 1946, shall apply in like manner as if the order had been made by the Secretary of State; and, in relation to any such delegation, the expression "government department" in section seven of this Act shall be construed as including a department of the Government of Northern Ireland.

9.—(1) The following provisions, that is to say—

- (a) the Defence (Finance) Regulations, 1939, in the form set out in Part B of the Second Schedule to this Act;
- (b) the directions given under Regulation 2A of those Regulations which are specified in paragraphs (a) to (c) of subsection (5) of section two of this Act; and
- (c) so far as applicable to the said Regulations, and subject to such adaptations, if any, as Her Majesty may by Order in Council specify, Part V of the Defence (General) Regulations, 1939, in the form set out in Part A of the said Second Schedule,

so long and so far as they continue in force in the United Kingdom, shall extend to the Channel Islands and the Isle of Man as if those islands were part of the United Kingdom. Channel Islands and Isle of Man.

(2) Where, by virtue of any of the enactments repealed by this Act, there are in force in any of the Channel Islands or in the Isle of Man at the date immediately before the commencement of this Act any regulations (hereinafter referred to as "local regulations") which correspond to any of the Defence (General) Regulations, 1939, then, notwithstanding anything in section one of this Act—

- (a) those local regulations as in force as aforesaid shall continue in force until the expiration of the period of one year commencing with the said date ; and
- (b) Her Majesty may by Order in Council coming into force on or before the expiration of the said period make provision corresponding to section two of this Act with respect to any of those local regulations which correspond to any of the Defence (General) Regulations, 1939, continued in force by the said section two :

Provided that Her Majesty may at any time by Order in Council revoke in whole or in part any of the aforesaid local regulations.

Short title, duration and repeals.

10.—(1) This Act may be cited as the Emergency Laws (Repeal) Act, 1959.

(2) The provisions of this Act, other than sections one and six thereof and this section, shall continue in force only until the expiration of the thirty-first day of December, nineteen hundred and sixty-four, and shall then expire ; and subsection (2) of section thirty-eight of the Interpretation Act, 1889, shall apply upon the expiration of those provisions as if those provisions had then been repealed.

(3) The enactments specified in Part I or II of the Fourth Schedule to this Act, to the extent respectively specified in the third column of the said Part I or II, and the provisions specified in Part III of that Schedule, are hereby repealed—

- (a) in the case of the enactments or provisions specified in the said Part I or Part III, as from the commencement of this Act ;
- (b) in the case of the enactments specified in the said Part II, as from the expiration of the thirty-first day of December, nineteen hundred and sixty-four.

SCHEDULES

FIRST SCHEDULE

Section 2.

AMENDMENTS IN DEFENCE REGULATIONS

Regulation 55 of the Defence (General) Regulations, 1939

1. For so much of paragraph (1) as precedes sub-paragraph (e) thereof there shall be substituted the following—

“(1) A competent authority may by order provide—

- (a) for imposing in respect of the movement, transport, disposal or acquisition of any article situated outside the United Kingdom, or in respect of the re-export of any article from the United Kingdom, or in respect of the construction of ships, such prohibitions or restrictions as appear to the competent authority to be expedient having regard to any agreement or arrangement concluded in respect of defence matters, or any consultations held in respect of such matters, between Her Majesty's Government in the United Kingdom and the government of any country outside the United Kingdom ;
- (b) for imposing in respect of the disposal, acquisition or possession of articles of any description under hire-purchase agreements or credit-sale agreements, or under agreements for letting on hire, such prohibitions or restrictions as appear to the competent authority to be required for restricting excessive credit ;
- (c) for regulating or prohibiting, so far as appears to the competent authority to be required having regard to any scheme administered by any government department for the provision of any welfare food—
 - (i) the acquisition, treatment, keeping, storage, transport, distribution, disposal, use or consumption of any welfare food other than liquid milk ;
 - (ii) the disposal, use or consumption of liquid milk ;
- (d) where it appears to the competent authority, and is so declared in the order, that a shortage of articles of any description essential to the wellbeing of the community or to national defence, being a shortage such as to threaten that wellbeing or defence, has arisen or is expected as the result of measures taken by the government of any country outside the United Kingdom or as the result of other special circumstances arising in any such country, for regulating or prohibiting the production, treatment, keeping, storage, movement, transport, distribution, disposal, acquisition, use or consumption of any articles of that description or of any substitute for any such article ”.

1st SCH.
—cont.

2. In paragraph (1F) after the word “shall” in the first place where that word occurs, there shall be inserted the words “in the case of an order made wholly or partly by virtue of sub-paragraph (d) of that paragraph.”

3. In paragraph (5), the words from “and any such” onwards shall be omitted.

4. In paragraph (6), in the sub-paragraph commencing “breach of the control”, for the words from “any provision” onwards there shall be substituted the words “any provision of any order under this Regulation for the time being in force, being a provision such as is mentioned in any of sub-paragraphs (a) to (d) of paragraph (1) of this Regulation”; and after the sub-paragraph commencing as aforesaid there shall be inserted the following—

“‘credit-sale agreement’ means an agreement for the sale of goods in which the whole or part of the purchase price is payable by instalments, whether the agreement is absolute or conditional;

‘hire-purchase agreement’ means an agreement for the bailment of goods under which the bailee may buy the goods or under which the property in the goods will or may pass to the bailee, whether on the performance of any act by the parties to the agreement or any of them or in any other circumstances;

‘welfare food’ means liquid milk, dried milk, concentrated orange juice, cod liver oil or vitamin tablets.”

5. At the end of paragraph (7) there shall be inserted the following—

“(b) for the reference in sub-paragraph (b) of paragraph (1) to hire-purchase agreements there shall be substituted a reference to contracts to which the Hire Purchase and Small Debt (Scotland) Act, 1932, applies by virtue of paragraph (a) of section one of that Act, or would so apply if the limitation as to value contained in the said paragraph (a) were omitted; and so much of paragraph (6) as defines ‘hire-purchase agreement’ shall not apply.”

Regulation 55AA of the Defence (General) Regulations, 1939

6. In paragraph (1)—

(a) the words “so far as appears to that authority to be necessary so to do for any of the purposes specified in subsection (1) of section one of the Supplies and Services (Transitional Powers) Act, 1945” shall be omitted;

(b) after the word “undertakings” in the first place where that word occurs there shall be inserted the words “being an undertaking or class or description of undertakings concerned with articles in relation to which an order is for the time being in force under Regulation 55 or 55AB of these Regulations, with medical supplies required for the purposes of the National Health Service Acts, 1946 to 1952, or the National Health Service (Scotland) Acts, 1947 to 1953, or with services required for the purposes of the said Acts”:

- (c) the sub-paragraph commencing with the words "A competent authority" in the last place where those words occur, shall be omitted.

1ST SCH.
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7. In paragraph (2)—

- (a) the words "for any of the purposes specified in subsection (1) of section one of the Supplies and Services (Transitional Powers) Act, 1945," shall be omitted ; and
- (b) at the end of sub-paragraph (c) there shall be added the words "in connection with any of these Regulations or any order made or direction given thereunder".

8. In paragraph (6), in the sub-paragraph commencing "competent authority" the words "delegation from or" shall be omitted ; and after the sub-paragraph commencing "designated officer" there shall be inserted the following—

"‘medical supplies’ includes surgical, dental and optical materials and equipment".

Regulation 55AB of the Defence (General) Regulations, 1939

9. In paragraph (1), for the words "goods of any description or the charges to be made for services of any description" there shall be substituted the words "any of the following goods, that is to say—

- (a) liquid milk ;
- (b) any other welfare food in relation to which an order under Regulation 55 of these Regulations is for the time being in force ;
- (c) medical supplies ;
- (d) any goods in relation to which an order under the said Regulation 55 made wholly or partly by virtue of sub-paragraph (d) of paragraph (1) of that Regulation is for the time being in force".

10. In paragraph (5) after the word "order" there shall be inserted the words "in relation to any goods in relation to which an order under the said Regulation 55 made wholly or partly by virtue of sub-paragraph (d) of paragraph (1) of that Regulation is for the time being in force".

11. In paragraph (7), after the word "State" there shall be inserted the words "the Board of Trade, the Minister of Supply" and the words from "and any such" onwards shall be omitted.

12. In paragraph (8)—

- (a) after the sub-paragraph commencing "commission" there shall be inserted the following—

"‘medical supplies’ includes surgical, dental and optical materials and equipment" ;

1ST SCH.
—cont.

(b) after the sub-paragraph commencing “undertaking” there shall be inserted the following—

“‘welfare food’ means liquid milk, dried milk, concentrated orange juice, cod liver oil or vitamin tablets”.

13. Paragraph (9) shall be omitted.

Part V of the Defence (General) Regulations, 1939

14. In Regulation 83, there shall be added at the end the words “and any person who contravenes this Regulation shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds, or to both such imprisonment and such fine.”

15. For Regulation 91 there shall be substituted the following—

“91.—(1) Where an offence under any of these Regulations committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

(2) In this Regulation, the expression “director”, in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.”

16. In Regulation 99, after the words “President of the Board” there shall be inserted the words “any Minister of State with duties concerning the affairs of the Board”.

The Defence (Finance) Regulations, 1939

17. In paragraph (1) of Regulation 2A, for the words from the beginning to the word “war” there shall be substituted the words “Where the Treasury are satisfied that action to the detriment of the economic position of the United Kingdom is being, or is likely to be, taken by the government of, or persons resident in, any country or territory outside the United Kingdom.”

18. In Regulation 10—

(a) in paragraph (1), after the words “as if” there shall be inserted the words “the Channel Islands and”;

(b) paragraph (3) shall be omitted.

General

19. For any reference in any of the Regulations continued in force by section two of this Act to the Army Act or to the Air Force Act there shall be substituted a reference to the Army Act, 1955, or, as the case may be, to the Air Force Act, 1955, or, where the context permits, air-force law.

SECOND SCHEDULE

Section 2.

FORM IN WHICH DEFENCE REGULATIONS CONTINUE IN FORCE BY
VIRTUE OF S. 2

PART A

THE DEFENCE (GENERAL) REGULATIONS, 1939

PART IV—ESSENTIAL SUPPLIES AND WORK

55.—(1) A competent authority may by order provide—

General control
of industry.

- (a) for imposing in respect of the movement, transport, disposal or acquisition of any article situated outside the United Kingdom, or in respect of the re-export of any article from the United Kingdom, or in respect of the construction of ships, such prohibitions or restrictions as appear to the competent authority to be expedient having regard to any agreement or arrangement concluded in respect of defence matters, or any consultations held in respect of such matters, between Her Majesty's Government in the United Kingdom and the government of any country outside the United Kingdom ;
- (b) for imposing in respect of the disposal, acquisition or possession of articles of any description under hire-purchase agreements or credit-sale agreements, or under agreements for letting on hire, such prohibitions or restrictions as appear to the competent authority to be required for restricting excessive credit ;
- (c) for regulating or prohibiting, so far as appears to the competent authority to be required having regard to any scheme administered by any government department for the provision of any welfare food—
 - (i) the acquisition, treatment, keeping, storage, transport, distribution, disposal, use or consumption of any welfare food other than liquid milk ;
 - (ii) the disposal, use or consumption of liquid milk ;
- (d) where it appears to the competent authority, and is so declared in the order, that a shortage of articles of any description essential to the wellbeing of the community or to national defence, being a shortage such as to threaten that wellbeing or defence, has arisen or is expected as the result of measures taken by the government of any country outside the United Kingdom or as the result of other special circumstances arising in any such country, for regulating or prohibiting the production, treatment, keeping, storage, movement, transport, distribution, disposal, acquisition, use or consumption of any articles of that description or of any substitute for any such article ;
- (e) for any incidental and supplementary matters for which the competent authority thinks it expedient for the purposes of the order to provide,

and also make such provision (including provision for requiring any person to furnish any information) as the competent authority thinks necessary or expedient for facilitating the introduction or operation:

2ND SCH.
—cont.

of a scheme of control for which provision has been made, or for which, in the opinion of the competent authority, it will or may be found necessary or expedient that provision should be made, under this Regulation; and an order under this Regulation may prohibit the doing of anything regulated by the order except under the authority of a licence granted by such authority or person as may be specified in the order, and may be made so as to apply either to persons or undertakings generally or to any particular person or undertaking or class of persons or undertakings, and so as to have effect either generally or in any particular area.

(1c) Any person who receives a commission in respect of a transaction which, or part of which, constitutes a breach of the control shall be guilty of an offence against this Regulation unless he proves that he did not know and had no reason to believe that the transaction or any part thereof constituted such a breach.

In this paragraph the expression "commission" includes any valuable consideration in the nature of a commission, whether computed on a percentage basis or otherwise.

(1f) The powers conferred by paragraph (1) of this Regulation shall, in the case of an order made wholly or partly by virtue of sub-paragraph (d) of that paragraph, extend to the making of an order—

- (a) providing for the seizure and, if thought desirable, the sale of any article in respect of which an offence against this Regulation, being a breach of the control, is believed to have been committed;
- (b) enabling the court by or before whom a person is convicted of any such offence in respect of the article, if satisfied that he was the owner of the article at the time of the seizure, to direct that the whole or part of the proceeds of the sale of the article shall be applied in or towards the satisfaction of any fine imposed on that person for that offence; and
- (c) providing, subject as aforesaid, for the return of the article or, as the case may be, of the proceeds of the sale thereof to such person as may prove that he was the owner of the article at the time of the seizure.

(5) For the purposes of this Regulation, any of the following shall be deemed to be a competent authority, that is to say, a Secretary of State, the Admiralty, the Board of Trade, the Minister of Power, the Minister of Agriculture, Fisheries and Food, the Minister of Health and the Minister of Supply.

(6) In this Regulation the following expressions have the meanings hereby respectively assigned to them:—

"breach of the control" means any offence against this Regulation constituted by a contravention of or failure to comply with any provision of any order under this Regulation for the time being in force, being a provision such as is mentioned in any of sub-paragraphs (a) to (d) of paragraph (1) of this Regulation;

“credit-sale agreement” means an agreement for the sale of goods in which the whole or part of the purchase price is payable by instalments, whether the agreement is absolute or conditional ;

2ND SCH.
—cont

“hire-purchase agreement” means an agreement for the bailment of goods under which the bailee may buy the goods or under which the property in the goods will or may pass to the bailee, whether on the performance of any act by the parties to the agreement or any of them or in any other circumstances ;

“welfare food” means liquid milk, dried milk, concentrated orange juice, cod liver oil or vitamin tablets ;

“undertaking” means any public utility undertaking or any undertaking by way of any trade or business ;

and any reference in this Regulation to articles shall be construed as including a reference to substances, vehicles, vessels or animals.

(7) This Regulation shall, in its application to Scotland, have effect subject to the following modifications :—

(a) subject to paragraph (2) of article 4 of the Transfer of Functions (Ministry of Food) Order, 1955, the references to the Minister of Agriculture, Fisheries and Food and the Minister of Health shall be omitted ;

(b) for the reference in sub-paragraph (b) of paragraph (1) to hire-purchase agreements there shall be substituted a reference to contracts to which the Hire Purchase and Small Debt (Scotland) Act, 1932, applies by virtue of paragraph (a) of section one of that Act, or would so apply if the limitation as to value contained in the said paragraph (a) were omitted ; and so much of paragraph (6) as defines “hire-purchase agreement” shall not apply.

(8) This Regulation shall, in its application to Northern Ireland, have effect as if the reference to the Minister of Health were omitted.

55AA.—(1) A competent authority may, by direction given with respect to any undertaking or by order made with respect to any class or description of undertakings, being an undertaking or class or description of undertakings concerned with articles in relation to which an order is for the time being in force under Regulation 55 or 55AB of these Regulations, with medical supplies required for the purposes of the National Health Service Acts, 1946 to 1952, or the National Health Service (Scotland) Acts, 1947 to 1953, or with services required for the purposes of the said Acts, require persons carrying on the undertaking or undertakings of that class or description—

Powers of competent authorities as to keeping of books, making of returns, entry and inspection.

(a) to keep such books, accounts and records relating to the undertaking as may be prescribed by the direction or, as the case may be, by the order or a notice served thereunder ;

(b) to furnish, at such times, in such manner and in such form as may be so prescribed, such estimates, returns or information relating to the undertaking as may be so prescribed.

2ND SCH.
—cont.

(2) Where it appears to a designated officer that it is necessary to authorise the inspection of any undertaking or class or description of undertakings—

- (a) for the purpose of enabling a competent authority to exercise any of the powers conferred on the authority by or under any of these Regulations, or to determine whether, and if so in what manner, any of those powers ought to be exercised ; or
- (b) for the purpose of securing compliance with any order made or direction given under these Regulations by or on behalf of a competent authority ; or
- (c) for the purpose of verifying any information furnished to a competent authority in connection with any of these Regulations or any order made or direction given thereunder ;

he may issue a warrant in writing to any person named in the warrant (hereinafter referred to as an “inspector”) authorising him to enter and carry out an inspection of the undertaking, or any undertaking of the class or description, specified therein.

(3) An inspector may, on production of the warrant issued to him, enter any premises used or appropriated for the purposes of any undertaking to which the warrant relates, and may inspect such premises and any articles found therein, and may require any person carrying on the undertaking or employed in connection therewith to produce such books, accounts or records, and to furnish such information, relating to the undertaking as may be authorised by the warrant, and may take such samples and carry out such tests as may be so authorised.

(4) An inspector may make such copies of, or extracts from, any document produced to him as he considers necessary for the information of the competent authority.

(6) In this Regulation the following expressions have the meanings hereby respectively assigned to them :—

“competent authority” means a competent authority for the purposes of Regulation 55 of these Regulations and, in paragraphs (2) and (4) of this Regulation, references to a competent authority include also any authority or person on whom by virtue of these Regulations powers have been conferred by order of any such competent authority as aforesaid ;

“designated officer” means a person empowered under the hand of a Minister of the Crown to act under paragraph (2) of this Regulation on behalf of a competent authority ;

“medical supplies” includes surgical, dental and optical materials and equipment ;

“undertaking” means any public utility undertaking, or any undertaking by way of trade or business ;

and any reference in this Regulation to articles shall be construed as including a reference to substances, vehicles, vessels and animals.

55AB.—(1) A competent authority may by order provide for controlling the prices to be charged for any of the following goods, that is to say—

2ND SCH.

—cont.

Price control of
goods and
services.

- (a) liquid milk ;
- (b) any other welfare food in relation to which an order under Regulation 55 of these Regulations is for the time being in force ;
- (c) medical supplies ;
- (d) any goods in relation to which an order under the said Regulation 55 made wholly or partly by virtue of sub-paragraph (d) of paragraph (1) of that Regulation is for the time being in force,

and for any incidental and supplementary matters for which the competent authority thinks it expedient for the purposes of the order to provide ; and any such order may prohibit the doing of anything regulated by the order except under the authority of a licence granted by such authority or person as may be specified in the order and may be made so as to apply either to persons or to undertakings generally or to any particular person or undertaking or class of persons or undertakings, and either to the whole or any part of any undertaking, and so as to have effect either generally or in any particular area.

(2) Any person who receives a commission in respect of a transaction which, or part of which, constitutes an offence against this Regulation shall be guilty of an offence against this Regulation unless he proves that he did not know and had no reason to believe that the transaction or any part thereof constituted such an offence.

(5) The powers conferred by paragraph (1) of this Regulation shall extend to the making of an order in relation to any goods in relation to which an order under the said Regulation 55 made wholly or partly by virtue of sub-paragraph (d) of paragraph (1) of that Regulation is for the time being in force—

- (a) providing for the seizure and, if thought desirable, the sale, of any goods in respect of which an offence against this Regulation is believed to have been committed ;
- (b) enabling the court by or before whom a person is convicted of any such offence in respect of the goods, if satisfied that he was the owner of the goods at the time of the seizure, to direct that the whole or part of the proceeds of the sale of the goods shall be applied in or towards the satisfaction of any fine imposed on that person for that offence ; and
- (c) providing, subject as aforesaid, for the return of the goods or, as the case may be, of the proceeds of the sale thereof to such person as may prove that he was the owner of the goods at the time of the seizure.

(7) For the purposes of this Regulation, any of the following shall be deemed to be a competent authority, that is to say, a Secretary of State, the Board of Trade, the Minister of Supply, the Minister of Power, the Minister of Agriculture, Fisheries and Food and the Minister of Health.

2ND SCH.
—cont.

(8) In this Regulation the following expressions have the meanings hereby respectively assigned to them :—

“commission” includes any valuable consideration in the nature of a commission, whether computed on a percentage basis or otherwise ;

“medical supplies” includes surgical, dental and optical materials and equipment ;

“undertaking” means any public utility undertaking or any undertaking by way of any trade or business ;

“welfare food” means liquid milk, dried milk, concentrated orange juice, cod liver oil or vitamin tablets ;

and any reference in this Regulation to goods shall be construed as including a reference to substances, vehicles, vessels or animals.

(10) Subject to paragraph (2) of article 4 of the Transfer of Functions (Ministry of Food) Order, 1955, this Regulation shall, in its application to Scotland, have effect as if the references to the Minister of Agriculture, Fisheries and Food and the Minister of Health were omitted.

(11) This Regulation shall, in its application to Northern Ireland, have effect as if the reference to the Minister of Health were omitted.

PART V—GENERAL AND SUPPLEMENTARY PROVISIONS

General provisions

False documents
and false
statements.

82.—(1) If, with intent to deceive, any person—

(a) forges or uses, or lends to or allows to be used by any other person, any document issued for the purposes of any of these Regulations or of any order made under any of these Regulations ; or

(b) makes or has in his possession any document so closely resembling such a document as aforesaid as to be calculated to deceive ; or

(c) produces, furnishes, sends or otherwise makes use of, for the purposes aforesaid, any book, account, estimate, return, declaration or other document which is false in a material particular,

he shall be guilty of an offence against that Regulation.

(2) If, in furnishing any information for the purposes of any of these Regulations or of any order made under any of these Regulations, any person makes any statement which he knows to be false in a material particular, or recklessly makes any statement which is false in a material particular, he shall be guilty of an offence against that Regulation.

(3) In this Regulation the expression “forges” has, in the application thereof to England and Northern Ireland, the same meaning as in the Forgery Act, 1913.

83. No person shall wilfully obstruct any person exercising any powers, or performing any duties, conferred or imposed on him by or under any of these Regulations ; and any person who contravenes this Regulation shall be liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding fifty pounds, or to both such imprisonment and such fine.

2ND SCH.

—cont.

Obstruction.

84. No person who obtains any information by virtue of these Regulations shall, otherwise than in connection with the execution of these Regulations or of an order made under these Regulations, disclose that information except with permission granted by or on behalf of a Minister of the Crown.

Restrictions on disclosing information.

87.—(3) Any permit, licence, permission or authorisation granted for the purposes of any of these Regulations may be revoked at any time by the authority or person empowered to grant it.

Permits, licences, &c.

Offences and legal proceedings

91.—(1) Where an offence under any of these Regulations committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer of the body corporate or any person who was purporting to act in any such capacity, he, as well as the body corporate, shall be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

Offences by corporations.

(2) In this Regulation, the expression “director”, in relation to a body corporate established by or under any enactment for the purpose of carrying on under national ownership any industry or part of an industry or undertaking, being a body corporate whose affairs are managed by its members, means a member of that body corporate.

92.—(1) If any person contravenes or fails to comply with any of these Regulations, or any order made under any of these Regulations, or any direction given or requirement imposed under any of these Regulations or under any order made under any of these Regulations, he shall, save as otherwise expressly provided by or under that Regulation, be guilty of an offence against that Regulation ; and, subject to any special provisions contained in these Regulations, a person guilty of an offence against any of these Regulations shall—

Penalties.

- (a) on summary conviction, be liable to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds, or to both such imprisonment and such fine ; or
- (b) on conviction on indictment, be liable to imprisonment for a term not exceeding two years or to a fine not exceeding five hundred pounds, or to both such imprisonment and such fine.

(2) Where a person convicted on indictment of an offence against any of these Regulations is a body corporate, no provision in these Regulations limiting the amount of the fine which may be imposed shall apply, and the body corporate shall be liable to a fine of such amount as the court thinks just.

2ND SCH.
—*cont.*
Legal
proceedings.

93.—(1) Proceedings for an offence against any of these Regulations may, unless the Regulation otherwise provides, be instituted either by a constable or by, or with the consent of, the Director of Public Prosecutions, and proceedings for an offence against Regulation 55, 55AA or 55AB of these Regulations may also be instituted by a competent authority within the meaning of that Regulation or by any such authority or person as may be specified by an order of such a competent authority; but proceedings shall not be instituted for an offence against any of these Regulations otherwise than as aforesaid.

(1A) No restriction imposed by these Regulations upon the institution of proceedings shall apply—

- (a) to the arrest, or the issue or execution of a warrant for the arrest, of any person in respect of an offence against any of these Regulations, or the remanding, in custody or on bail, of any such person charged with such an offence; or
- (b) to any proceedings under the Naval Discipline Act, the Army Act, 1955, or the Air Force Act, 1955.

(3) Proceedings in respect of an offence alleged to have been committed by a person against any of these Regulations may be taken before the appropriate court in the United Kingdom having jurisdiction in the place where that person is for the time being.

(4) Paragraph (1) of this Regulation shall not extend to Scotland.

Supplementary provisions

Service of
notices.

97. Without prejudice to any special provisions contained in these Regulations, or in any order made thereunder, a notice to be served on any person for the purposes of any of these Regulations or any order made thereunder may be served by sending it by post in a letter addressed to that person at his last or usual place of abode or place of business.

Revocation and
variation of
orders, &c.

98. Any power conferred by any of these Regulations to make any order shall be construed as including a power, exercisable in the like manner and subject to the like conditions, if any, to revoke or vary the order.

Exercise of
powers of
Board of Trade.

99.—(1) Anything required or authorised by or under these Regulations to be done by, to or before the Board of Trade may be done by, to or before the President of the Board, any Minister of State with duties concerning the affairs of the Board, any secretary, under-secretary or assistant secretary of the Board or any person authorised in that behalf by the President.

Application of
Interpretation
Act, 1889, to
Defence
Regulations, &c.

99B. The Interpretation Act, 1889, shall apply to the interpretation of these Regulations and any order made thereunder as it applies to the interpretation of an Act of Parliament, and for the purposes of section thirty-eight of the Interpretation Act, 1889, these Regulations and any order made thereunder shall be deemed to be an Act of Parliament.

Interpretation.

100.—(1) In these Regulations, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“drainage authority” has the same meaning as in the Land Drainage Act, 1930;

"local authority" means the Common Council of the City of London, the council of a metropolitan borough or the council of a county, county borough or county district ;

2ND SCH.
—cont.

"public utility undertaking" means any of the following undertakings the carrying on of which is authorised by any Act (whether public general or local) or by any order made under, or confirmed by, an Act, that is to say :—

(a) any undertaking for the supply of electricity, gas or water ;

(b) any railway, light railway, tramway, road transport, water transport, canal, inland navigation, dock, harbour, pier or lighthouse undertaking ;

(c) any sewerage or sewage disposal undertaking, or any undertaking for the collection or disposal of refuse ;

(d) any undertaking of a drainage authority ;

and includes any such undertaking as aforesaid which is carried on by a local authority ;

"ship" and "vessel" have respectively the same meanings as in the Merchant Shipping Act, 1894.

(3) Where, under any of these Regulations, any person has power to authorise other persons to act under that Regulation, the power may be exercised so as to confer the authority either on particular persons or on a specified class of persons.

101. These Regulations shall apply to Scotland subject to the following modifications :—

Application to
Scotland.

(5) In the last preceding Regulation—

(a) references to a drainage authority shall be omitted ;

(b) for the definition of "local authority" there shall be substituted the following definition :—

" 'local authority' means any county, town, or district council ".

102. In the application of these Regulations to Northern Ireland the following modifications shall have effect :—

Application to
Northern
Ireland.

(1) References to the Director of Public Prosecutions shall be construed as references to the Attorney General for Northern Ireland, or, in a case in which the Attorney General for Northern Ireland is unable to act, to the deputy appointed under section two of the Office of Attorney General Act (Northern Ireland), 1923, to act as Attorney General for Northern Ireland ;

(2) The expression "summary conviction" means conviction subject to and in accordance with the Petty Sessions (Ireland) Act, 1851, and any Act amending that Act, whether past or future ;

(10) The expression "Act" includes an Act of the Parliament of Northern Ireland, and references to enactments of the Parliament of the United Kingdom shall be construed as references to those enactments as they apply in Northern Ireland.

2ND SCH.

—cont.

Exercise of
certain powers
by the
Government of
Northern
Ireland.

102A.—(1) Where by any of these Regulations any power is conferred upon the Secretary of State, then, in so far as the power is exercisable in relation to Northern Ireland the Secretary of State may, to such extent and subject to such restrictions as he thinks proper, by order delegate the power either to a department of the Government of Northern Ireland specified in the said order or to the appropriate department or departments of the said Government; and where any power is so delegated to the appropriate department or departments, it shall be exercised by such department or departments of the said Government as the Governor of Northern Ireland may by order specify.

Short title.

105. These Regulations may be cited as the Defence (General) Regulations, 1939.

PART B

THE DEFENCE (FINANCE) REGULATIONS, 1939

Power of
Treasury to
prohibit action
on certain
orders as to
gold, &c.

2A.—(1) Where the Treasury are satisfied that action to the detriment of the economic position of the United Kingdom is being, or is likely to be, taken by the government of, or persons resident in, any country or territory outside the United Kingdom, the Treasury may give general or special directions prohibiting, either absolutely or to such extent as may be specified in the directions, the carrying out, except with permission granted by or on behalf of the Treasury, of any order given by or on behalf of the government of that country or territory or any person resident therein at the time when the directions were given or at any later time while the directions are in force, in so far as the order—

- (i) requires the person to whom the order is given to make any payment or to part with any gold or securities; or
- (ii) requires any change to be made in the persons to whose credit any sum is to stand or to whose order any gold or securities are to be held.

(2) Where any directions are given under this Regulation with respect to any country or territory, a branch in that country or territory of any business, whether carried on by a body corporate or otherwise, shall, for the purposes of this Regulation, be treated in all respects as if the branch were a body corporate resident in that country or territory.

Application of
certain
provisions of
the Defence
(General)
Regulations,
1939.

9.—(1) The provisions of Part V of the Defence (General) Regulations, 1939, shall apply for the purpose of the enforcement of these Regulations, and otherwise in relation thereto, as if these Regulations were included in those Regulations.

Interpretation.

10.—(1) In these Regulations, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

“gold” means gold coin or gold bullion;

“security”, except in so far as is otherwise expressly provided, includes—

- (a) shares, stocks, bonds, notes, debentures, debenture stock and Treasury bills;

(b) a deposit receipt in respect of the deposit of securities ; 2ND SCH
—cont.

(c) a unit or a sub-unit of a unit trust ;

(d) an annuity granted under the Government Annuities Act, 1929, or to which either Part I or Part II of that Act applies, and a life assurance policy or other contract entered into with an assurance company for securing the payment in the future of any capital sum or sums or of an annuity ;

(e) a warrant conferring an option to acquire a security ;

(f) a share in an oil royalty ;

but does not include a bill of exchange or a promissory note ;

and references in these Regulations to the United Kingdom shall be construed as if the Channel Islands and the Isle of Man were part of the United Kingdom.

(2) Any consent or permission granted by or on behalf of the Treasury under any of these Regulations may be granted either absolutely or subject to conditions.

11. These Regulations may be cited as the Defence (Finance) Short title. Regulations, 1939.

PART C

THE DEFENCE (ARMED FORCES) REGULATIONS, 1939

1. These Regulations may be cited as the Defence (Armed Forces) Regulations, 1939.

6. The Admiralty, the Army Council or the Air Council may by order authorise officers and men of Her Majesty's naval, military or air forces under their respective control to be temporarily employed in agricultural work or such other work as may be approved in accordance with instructions issued by the Admiralty, the Army Council or the Air Council, as the case may be, as being urgent work of national importance, and thereupon it shall be the duty of every person subject to the Naval Discipline Act, military law or air-force law to obey any command given by his superior officer in relation to such employment, and every such command shall be deemed to be a lawful command within the meaning of the Naval Discipline Act, the Army Act, 1955, or the Air Force Act, 1955, as the case may be.

Section 2.

THIRD SCHEDULE

SUPPLEMENTARY PROVISIONS WITH RESPECT TO DEFENCE
REGULATIONS

1. Any order duly made in pursuance of any Defence Regulation continued in force by virtue of section two of this Act shall have effect notwithstanding anything inconsistent therewith contained in any enactment other than this Act or in any instrument having effect by virtue of any enactment other than this Act.

2. Unless the contrary intention appears therefrom, any provisions contained in, or having effect under, any such Regulation as aforesaid shall—

(a) in so far as they specifically impose prohibitions or obligations in relation to vessels or aircraft, apply to all vessels or aircraft in or over the United Kingdom and to all British ships or aircraft, not being excepted ships or aircraft, wherever they may be ;

(b) in so far as they impose prohibitions, restrictions or obligations on persons, apply, subject to the foregoing sub-paragraph, to all persons in the United Kingdom and all persons on board any British ship or aircraft, not being an excepted ship or aircraft, and to all other persons, wherever they may be, who are citizens of the United Kingdom and Colonies or British protected persons and who are ordinarily resident in the United Kingdom.

3. In the last foregoing paragraph—

“British aircraft” means an aircraft registered in—

(a) any part of Her Majesty's dominions ;

(b) any country outside Her Majesty's dominions in which for the time being Her Majesty has jurisdiction ;

(c) any country consisting partly of one or more colonies and partly of one or more such countries as are mentioned in the last foregoing sub-paragraph ;

“British protected person” has the same meaning as in the British Nationality Acts, 1948 and 1958 ;

“excepted ship or aircraft” means a ship or aircraft registered in Canada, Australia, New Zealand, the Union of South Africa, the Republic of Ireland, India, Pakistan, the Federation of Rhodesia and Nyasaland, Ceylon, Ghana or the Federation of Malaya, or in any territory administered by the government of any of the countries aforesaid, not being a ship or aircraft for the time being placed at the disposal of, or chartered by or on behalf of, Her Majesty's Government in the United Kingdom.

4. Every document purporting to be an instrument made or issued by any Minister or other authority or person in pursuance of any provision contained in, or having effect under, any such Regulation as aforesaid, and to be signed by or on behalf of that Minister, authority or person, shall be received in evidence and shall, until the contrary is proved, be deemed to be an instrument made or

issued by that Minister, authority or person; and prima facie evidence of any such instrument as aforesaid may, in any legal proceedings (including arbitrations), be given by the production of a document purporting to be certified to be a true copy of the instrument by or on behalf of the Minister or other authority or person having power to make or issue the instrument.

3RD SCH.
—cont.

FOURTH SCHEDULE

Section 10.

REPEALS

PART I

Repeals in Acts of Parliament as from the commencement of this Act

Session and Chapter	Short Title	Extent of Repeal
2 & 3 Geo. 6. c. 38.	The Ministry of Supply Act, 1939.	Sections seven to nine. In section ten, paragraph (b) of subsection (3). Sections eleven to thirteen. In section sixteen, paragraph (b) of subsection (1).
2 & 3 Geo. 6. c. 62.	The Emergency Powers (Defence) Act, 1939.	The whole Act.
2 & 3 Geo. 6. c. 70.	The Ships and Aircraft (Transfer Restriction) Act, 1939.	Subsection (2) of section thirteen.
2 & 3 Geo. 6. c. 100.	The Government and other Stocks (Emergency Provisions) Act, 1939.	Section two and subsection (2) of section three.
9 & 10 Geo. 6. c. 10.	The Supplies and Services (Transitional Powers) Act, 1945.	The whole Act except section six and subsection (1) of section ten.
9 & 10 Geo. 6. c. 26.	The Emergency Laws (Transitional Provisions) Act, 1946.	The whole Act except sections fifteen, sixteen and twenty-four and the Second Schedule.
10 & 11 Geo. 6. c. 55.	The Supplies and Services (Extended Purposes) Act, 1947.	The whole Act.
11 & 12 Geo. 6. c. 7.	The Ceylon Independence Act, 1947.	Paragraph 6 of the Second Schedule.
11 & 12 Geo. 6. c. 10.	The Emergency Laws (Miscellaneous Provisions) Act, 1947.	The whole Act except sections two and eleven, subsection (1) of section twelve and the Second Schedule.
14 & 15 Geo. 6. c. 25.	The Supplies and Services (Defence Purposes) Act, 1951.	Sections one and four.
5 & 6 Eliz. 2. c. 6.	The Ghana Independence Act, 1957.	Paragraph 9 of the Second Schedule.
5 & 6 Eliz. 2. c. 60.	The Federation of Malaya Independence Act, 1957.	Paragraph 11 of the First Schedule.

4TH SCH.

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PART II

*Repeals in Acts of Parliament as from the expiration of the
Thirty-first Day of December, Nineteen Hundred and Sixty-four*

Session and Chapter	Short Title	Extent of Repeal
2 & 3 Geo. 6. c. 38.	The Ministry of Supply Act, 1939.	Sections ten and fourteen.
2 & 3 Geo. 6. c. 70.	The Ships and Aircraft (Transfer Restriction) Act, 1939.	The whole Act.
9 & 10 Geo. 6. c. 10.	The Supplies and Services (Transitional Powers) Act, 1945.	The whole Act.
11 & 12 Geo. 6. c. 7.	The Ceylon Independence Act, 1947.	Paragraph 7 of the Second Schedule.
11 & 12 Geo. 6. c. 10.	The Emergency Laws (Miscellaneous Provisions) Act, 1947.	Section eleven.
5 & 6 Eliz. 2. c. 6.	The Ghana Independence Act, 1957.	Paragraph 10 of the Second Schedule.
5 & 6 Eliz. 2. c. 60.	The Federation of Malaya Independence Act, 1957.	Paragraph 12 of the First Schedule.

PART III

Repeals in Orders in Council as from the commencement of this Act

1. In the Defence Regulations (No. 9) Order, 1954, sub-paragraph (1) of paragraph 1, sub-paragraph (1) of paragraph 2 and sub-paragraph (1) of paragraph 3.
2. The Defence Regulations (No. 1) Order, 1955.
3. The Defence Regulations (No. 1) Order, 1956.
4. The Defence Regulations (No. 3) Order, 1956.
5. The Defence Regulations (No. 5) Order, 1956.
6. The Defence Regulations (No. 6) Order, 1956.
7. The Defence Regulations (No. 1) Order, 1957.

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Table of Statutes referred to in this Act

Short Title	Session and Chapter
Petty Sessions (Ireland) Act, 1851... ..	14 & 15 Vict. c. 93.
Naval Discipline Act	29 & 30 Vict. c. 109.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Forgery Act, 1913	3 & 4 Geo. 5. c. 27.
Government Annuities Act, 1929	19 & 20 Geo. 5. c. 29.
Land Drainage Act, 1930	20 & 21 Geo. 5. c. 44.
Hire Purchase and Small Debts (Scotland) Act, 1932	22 & 23 Geo. 5. c. 38.
Ministry of Supply Act, 1939	2 & 3 Geo. 6. c. 38.
Emergency Powers (Defence) Act, 1939	2 & 3 Geo. 6. c. 62.
Ships and Aircraft (Transfer Restriction) Act, 1939	2 & 3 Geo. 6. c. 70.
Government and other Stocks (Emergency Pro- visions) Act, 1939	2 & 3 Geo. 6. c. 100.
Supplies and Services (Transitional Powers) Act, 1945	9 & 10 Geo. 6. c. 10.
Ministers of the Crown (Transfer of Functions) Act, 1946	9 & 10 Geo. 6. c. 31.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Emergency Laws (Miscellaneous Provisions) Act, 1947	11 & 12 Geo. 6. c. 10.
Army Act, 1955	3 & 4 Eliz. 2. c. 18.
Air Force Act, 1955	3 & 4 Eliz. 2. c. 19.

CHAPTER 20

An Act to increase the statutory limits imposed on the amounts outstanding in respect of borrowings by the Electricity Council and Electricity Boards.

[25th March, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The enactments limiting the borrowing powers of the Electricity Council and Electricity Boards by reference to the aggregate of amounts outstanding shall, as respects sums borrowed

Extension of
borrowing
powers.